belonged to Afzal or Geelani. Further, the police recovered six SIM cards and three mobiles from the deceased terrorists. Apart from this, it is alleged that Afzal's number 9811489429 was written on all the fake I-cards of 'Xansa Web City', recovered from the militants. This fact emboldened the police to zero in on Afzal but the SIM card for this number has not been recovered. Further, the fake I-cards that carried Afzal's number were not sealed. They were just pasted on paper and remained in the investigators' custody. Prosecution Witness 8, Head Constable Ashwini Kumar posted at the Parliament Street police station, was among the first to arrive at the site of the crime and prepared the seizure memos listing the articles recovered from the site and the bodies. He told the court that as far as he could remember, 'the telephone number was not written on the seizure.'

When it was pointed out in court that there was no known way to reach Geelani before the receipt of the Airtel letter, the Delhi High Court gave the benefit of doubt to the prosecution, saying that this could be a 'typographical error'. The court did not 'consider it necessary to delve further' into the controversy emanating from this letter since 'no question was put to the security manager of Airtel,' the Supreme Court observed. Further, 'none of the witnesses pertaining to the FIR were cross-examined.'[10]

But if there was a 'typographical error' and the Airtel note was written before 17 December, it creates another problem. The note said, 'responding to the police request for call records refer to section 3/4/5/21/ 22 POTO . . .' The Prevention of Terrorist Activities Ordinance (POTO) was promulgated only on 19 December that year. How could the police apply POTO provisions before the ordinance came into force?

Call records placed before the court were uncertified computer printouts. These records show that two calls were made between Shaukat and Afzal, the called and calling numbers were identical, the time and location were identical, but the IMEI number—the handset's number apart from the phone number—was different. According to the records, on 13 December 2001, at 11:19:14 a.m., two calls were made simultaneously from Afzal to Shaukat but from different handsets. The same thing occurred again at 11:32:40 a.m.

As per the charge sheet, Inspector Mohan Chand had already mounted surveillance on Geelani's mobile on 13 December 2001. The next day, a call from Srinagar was intercepted on this cell. The sequence of arrests began on the morning of 15 December, with Geelani's arrest at 10, Afsan's at 10.45, and Afzal's and Shaukat's in Srinagar at 11.30 a.m. Allegedly, Geelani